



Memorandum of Understanding

Among

The

Department of Defense

Department of Labor

Department of Education

Department of Veterans Affairs

Department of Homeland Security (United States Coast Guard)

U.S. Small Business Administration

U.S. Office of Personnel Management

regarding the

Transition Assistance Program for Service Members

Transitioning from Active Duty

Purpose: This Memorandum of Understanding (MOU) sets forth the agreement among the Department of Defense (DoD), Department of Labor (DOL), Department of Education (ED), Department of Veterans Affairs (VA), United States Coast Guard (USCG) (representing the Department of Homeland Security (DHS)), the U.S. Small Business Administration (SBA), and the U.S. Office of Personnel Management (OPM), hereinafter collectively referred to individually as “partner” and collectively as the “partners,” regarding the partners’ collaboration on the redesigned Transition Assistance Program (TAP) for the purposes of recognizing military service as a path to civilian career success. The future of the country’s All Volunteer Force depends upon this recognition.

Authorities: The following authorities pertain to this MOU:

Authority for DoD to enter into an MOU is found in Section 1144 of Title 10 U.S Code (U.S.C.)

Authority for the DoD to provide transition assistance is found in Title 10 U.S.C., Chapter 58.

Authority for ED to enter into agreements with federal or other public agencies, including this MOU, is found in 20 U.S.C. §3475.

Authorities for OPM to enter into agreements are found in 5 U.S.C. § 1103 and E.O. 13518.

Authorities for SBA to enter into agreements are found in 15 U.S.C. §§ 637(b)(1)(A) 657b(d).

Authority for the DOL to enter into this MOU is found in 10 U.S.C. §1144, which requires the Secretary of Labor to enter into a detailed agreement with the Secretaries of Defense, Homeland Security, and Veterans Affairs to carry out the TAP program.

Authorities for the DOL to administer TAP is found in 38 U.S.C. §4113 and 10 U.S.C. §1144.

Authorities for VA to enter into agreements are found in 38 U.S.C. §§523.

Authorities for VA to provide transition assistance benefits are found in 10 U.S.C. Chapter 58 §1144 and 38 U.S.C. §6306(b) and (c).

Authority for the USCG to enter into this MOU and provide transition assistance benefits is found in Title 10 U.S.C. Chapter 58, 14 U.S.C. §§504, 102, and Department of Homeland Security (DHS) Delegation No. 0170.1, paragraph 17.

Authority for the Joint Executive Committee (JEC) to be established is found in 38 U.S.C. § 320.

Background: This MOU supersedes the December 2016 TAP MOU, as well as any changes from the two-year review on October 8, 2019, among the DoD, DOL, ED, VA, DHS, SBA, and OPM. Section 552 of the NDAA (John S. McCain National Defense Authorization Act) for Fiscal Year (FY) 2019 (P.L. 115-232) amended Title 10 of the U.S.C., and required improvements to TAP. Section 1144 of 10 U.S.C. requires DOL, DoD, DHS, and VA to enter into a detailed agreement regarding this requirement. ED, SBA, and OPM also provide benefits and program information, as appropriate, to Service members transitioning from active duty, as well as their spouses, that will be used to contribute to the TAP.

Each day Service members and their spouses make the transition from the military to civilian life. A successful transition from the military into civilian employment is an important and collaborative effort. To aid in that transition, DoD, DOL, ED, VA, DHS, SBA, and OPM designed TAP to focus on ensuring Service members are career ready and meet Career Readiness Standards (CRS). One of the components of Transition Assistance is the TAP Curriculum which provides skills, education, training, and benefits information to enable Service members to meet CRS. More detailed information on the TAP Curriculum components and CRS is contained in Department of Defense Instruction 1332.35 “Transition Assistance Program (TAP) for Military Personnel,” dated September 26, 2019.

Objectives: The partners will support and advance the ongoing implementation, assessment, and enhancement of TAP. This collaboration will serve to support Service members and their spouses in pursuing employment, higher education, skills and career training, apprenticeships, credentials, and entrepreneurship. Every effort will be made to include Service members in remote or geographically-dispersed areas.

In order to reduce redundancy, better serve unique populations, and improve coordination, the partners will collaborate and coordinate with other agencies that have special programs and initiatives for wounded, ill, and injured Service members.

The partners will provide a comprehensive mix of education and skills building to help enable Service members to meet CRS. Service members will be required to meet CRS, which includes core requirements, such as developing a financial plan for their first year as civilians and creating individual transition plans to meet post-military goals, such as attending college, seeking employment, returning to civilian employment, or starting a business.

The partners will implement the TAP Curriculum. The TAP Curriculum provides counseling (pre-separation counseling, career and education counseling, VA benefits counseling, etc.), information, skills building and assistance to eligible Service members and their spouses in accordance with 10 U.S.C. Chapter 58. Transition assistance includes components designed to prepare Service members to be career ready prior to transitioning from active duty through participation in mandatory and additional curricula. Transition Assistance Components consist of:

- Initial Individualized Counseling
 - Personal self-assessment/Individual Transition Plan (ITP)
- Pre-separation/Transition Counseling
- DoD/ DHS (USCG) Transition Day
 - Managing Your Transition (MyTransition)
 - Military Occupational Code Crosswalk
 - Financial planning for transition
- VA Benefits and Services
- DOL One-Day
- Two-Days of Instruction:
 - DOL Employment
 - DoD Education
 - DOL Vocational
 - SBA Entrepreneurship
- Capstone/ITP Review

Capstone: Capstone is the final stage of the TAP process. Capstone is a two-stage process which takes place no later than 90 days prior to separation, and consists of a review and verification of a Service member meeting CRS. Commanders will use the DD 2648 eForm to document the verification. Exceptions are:

- In the case of eligible Active Component (AC) Service members with an unanticipated separation of 89 days or fewer before discharge or release from active duty, Capstone will begin no later than the date of separation as reflected on the DD Form 214.
- In the case of eligible Reserve Component (RC) members released from active duty in which operational requirements, as determined by the Secretary of the Military Department concerned, make the prescribed timeline not feasible, Capstone will begin no later than the date of release from active duty as reflected on DD Form 214.

Scope: Section 1144 of Title 10, U.S.C., makes participation in TAP mandatory for all eligible Service members except in certain limited circumstances. The Secretary of Defense and the Secretary of Homeland Security approved exemptions from mandatory participation in the TAP after consultation with the Secretary of Labor and

the Secretary of Veterans Affairs. Exemptions for DoD are contained in the Department of Defense Instruction (DoDI) 1332.35, “Transition Assistance Program (TAP) for Military Personnel,” dated September 26, 2019. USCG exemptions are contained in the Transition Assistance Program, Commandant Instruction (COMDINST) 1900.2 (series).

The installation commander shall decide whether to enter into local TAP MOUs. The Military Departments shall create a standard MOU template, which may be used at the local military installation level to enter into separate MOUs with appropriate partner agencies (i.e., VA Regional Offices or DOL Director of Veterans Employment and Training (DVET) Office or a SBA District Office in the appropriate state). Local MOUs are intended to outline specific local agreements not addressed in this MOU.

The USCG shall also enter into separate MOUs at the local level with the appropriate partner agencies (i.e., VA Regional Office or DOL Director of Veterans Employment and Training (DVET) Office in the appropriate state), no later than 180 days after the issuance of the MOU, to meet USCG operational plans not addressed in this MOU. Partners will support local MOUs among installations and appropriate partners on a regional and state basis. The local MOUs must conform to the overall intent and authorities contained in this MOU.

The local installations within the Continental United States (CONUS) will coordinate with local SBA District Offices to deliver the Entrepreneurship Track as described herein. To the extent an installation is located Outside of the Continental United States (OCONUS) such installations will coordinate directly with the SBA’s Office of Veterans Business Development. The coordination and delivery of the Entrepreneurship Track will also conform to the overall intent and authorities in this MOU.

Definitions: See Acronyms and Definitions attached and incorporated in the MOU by reference.

Joint Responsibilities: The partners agree to do, within their respective funding, capabilities, and legal and regulatory authorities, the following:

- a. Coordinate with the representatives of the agency partners as appropriate on initiatives that may affect the programs being conducted under this MOU. An intended outcome of such coordination is to reduce duplicative activities.
- b. Coordinate, as required, support services necessary for TAP with Military Service Organizations (MSOs) and Veterans Service Organizations (VSOs), State Department of Veterans Affairs, qualified State Workforce Personnel, and qualified public and private entities that have experience with instructing Service members. One intended outcome of such coordination is the reduction of duplicative programs. Such agreements shall be included in military installations’ local MOUs as well as those of non-military locations as determined among the partners, and must be reviewed and approved by each appropriate partner’s legal staff.
- c. Coordinate and facilitate TAP Curriculum throughout the Military Life Cycle (MLC) to prepare Service members for their civilian life throughout their entire military career to ensure they are career ready upon transitioning from active duty.
- d. To more effectively enable the partners to fulfill their data collection and sharing requirements, assess program efficacy, and to deliver the full continuum of benefits and services to support individual transitioning Service members, each partner will maintain an Information Sharing/Security Agreement (ISA) that will

specify how the partners intend to collect, use, maintain, and disseminate information on individual program participants in accordance with the Privacy Act and established DoD and DHS Personally Identifiable Information (PII) requirements for creation, collection, use, process, storage, maintenance, dissemination, disclosure, and disposal of PII. The ISA will comply with all applicable Federal laws, regulations and Government-wide policies, including but not limited to the Privacy Act of 1974, Executive Order (EO) 13556, OMB Circular A-130, and OMB Memorandum 17-12. The partners will incorporate DoD and DHS PII requirements for creation, collection, use, process, storage, maintenance, dissemination, disclosure, and disposal of PII to the extent such requirements are consistent with each partner's own policies and governing laws and regulations, including those imposed on each agency under the Privacy Act. Each partner to this MOU that wishes to collect data from another will prepare a business case to support the purpose and type of data requested from other partners. The purpose of the business case is to clearly articulate how the requested data would enable the partner to meet its mission and better serve transitioning Service members. Specific information regarding data collection, among other items, is contained in Appendix A of this MOU. No data protected by the Privacy Act of 1974 or the Health Insurance Portability and Accountability Act of 1996 will be exchanged or collected under this MOU unless otherwise authorized by law and in compliance with the ISA agreed to by the partners.

- e. Coordinate with the Office of the Under Secretary of Defense for Personnel and Readiness, Military-Civilian Transition Office (OSD/MCTO) to connect with the Military Departments and installation Points of Contact (POC) on all matters pertaining to public affairs efforts at the installation. Military Departments and installation POCs will collaborate with partners to this MOU to provide current information through Military Departments and installation newspaper articles, flyers and posters, and other electronic and social media upon approval by the OSD/MCTO. OSD/MCTO will work with DOL, ED, VA, USCG (DHS), SBA, and OPM on public affairs related to TAP prior to publication.
- f. DOL, ED, VA, USCG (DHS), SBA, and OPM will work with the OSD/MCTO and the Military Departments to develop, review and enhance CRS, TAP curriculum, and MLC modules as appropriate.
- g. The partners will work with each other to coordinate a systematic and singular approach to develop, assess, evaluate and improve transition assistance. The partners will coordinate any major revisions with each other to help ensure quality, accuracy, and completeness of the Transition Assistance and MLC TAP. Each partner may also conduct independent evaluations of the respective curriculum they administer.
- h. Provide an effective and well-coordinated sequence of transition services, minimizing any duplication of services among the partners for eligible Service members.
- i. Provide for effective classroom sizes. To ensure an effective classroom experience, the optimal class size for all TAP components is 30. The minimum class size should be no fewer than 10 registered participants, and the maximum class size should be no more than 50 registered participants. Approval for classes above or below the stated limits requires agreement between the local installation and partner agencies. Requests that deviate from the established minimum and maximum class size will be agreed to at the local installation level with partner agencies. In situations where these requirements cannot be met, the Military Departments, with OSD/MCTO, approval, will coordinate in a timely manner with the other partners to accommodate service delivery.
- j. As appropriate, the partners will maximize the use of technology where feasible to achieve efficiencies and provide broader options for the delivery of curricula and materials to Service members. The partners will

collaborate as necessary on developing alternative methods to provide TAP to Service members to include blended and virtual delivery. Funding for development and implementation of alternative methods shall be determined by the appropriate partners. Should the need arise, separate Inter-Agency Agreements (IAAs), e.g., installation level support agreements, for transfer/reimbursement should be established among the relevant partner agencies in keeping with OMB guidance and other agency statutes, regulations, and rules, as applicable. This MOU does not establish any fiscal obligation among the partners.

- k. Ensure the following, in descending order of priority, for TAP participation and scheduling purposes:
 - (1) Eligible Service members identified as part of the targeted population, as defined in the Glossary.
 - (2) Eligible Service members closest to their dates of separation, retirement, or release from active duty.
 - (3) Eligible Service members returning from overseas or assigned to remote or isolated and geographically dispersed locations.
 - (4) All other eligible Service members.
 - (5) Eligible spouses or family caregivers of eligible Service members transitioning from active duty.
 - (6) Eligible Service members who attended any previous transition assistance and who want to repeat it may do so as resources and capacity allow.
- l. Meet periodically to discuss program efficacy, accomplishments, best practices, planning activities and/or to resolve issues.
- m. Increase awareness and effectiveness of TAP and its components through development and sharing of messages and success stories with all interagency partners through participation in the strategic communications working group and supporting each other in the sharing of information about TAP-related interagency programs. Engage our internal communications/public affairs offices and civilian media organizations and outlets to strategically communicate and raise awareness of the TAP.
- n. As appropriate, encourage joint research, and share partner conducted research, that complies with implemented ISA and/or that does not conflict with any other regulatory or statutory guidance or agency directive.
- o. Develop legislative proposals as necessary to strengthen interagency efforts and mitigate challenges and barriers such as, housing, financial, health care, employment or other challenges Service members face during their transition from active duty.
- p. Engage public and private sectors, via existing federal advisory councils, and appropriate ad hoc engagements, to seek ways to strengthen TAP Curriculum, TAP services and processes, and build employment and training opportunities for transitioning Service members.
- q. Collaborate to leverage opportunities, where relevant, that strengthen counseling services around the issue of college choice, employment and other training opportunities, as well as entrepreneurship opportunities.
- r. Should the need arise for one agency to provide assets, funds, services, and/or supplies to another agency to carry out TAP, the agencies involved will negotiate and execute a recordable, reimbursable agreement under a specific statutory authority, e.g., the Economy Act, 31 U.S.C. § 1535.
- s. Regularly meet and maintain the TAP governance structure. The governance structure will include the TAP Executive Council (EC), being classified under the JEC (for the purposes of this MOU) as an Executive

Committee equal to the Benefits Executive Committee (BEC) and Health Executive Committee (HEC). (Although the partners allow the TAP-EC to be classified under the JEC for the purposes of this MOU, the partners' general authority over TAP as established by 10 U.S.C. Chapter 58 remains). Interagency partners will participate in the JEC, EC, and the Senior Steering Group (SSG) meetings on a quarterly basis, at a minimum. Any other working groups, and meeting frequencies, will be determined by the SSG.

- t. DOL, ED, VA, DHS, SBA, and OPM will work with the OSD/MCTO and the Military Departments to coordinate visits (refer to Appendix B.) to observe TAP (e.g., quality control, quality assurance, general visits) in accordance with the "Request to Observe TAP: Standard Operating Procedure" at: <https://community.max.gov/pages/viewpage.action?spaceKey=CrossAgency&title=TRANSITION+ASSISTANCE+PROGRAM+INTERAGENCY>. The request to Observe/Visit TAP Form is found in Appendix C.

Under Secretary of Defense for Personnel and Readiness (Military Civilian Transition Office) and Military Departments Shall:

- a. Be responsible for developing and delivering classroom (brick and mortar) and virtual asynchronous DoD curricula for the DoD/DHS USCG Transition Day, which includes: Managing Your Transition (My Transition), Military Occupational Code Crosswalk, Financial planning for transition, and the DoD Education module (Managing Your (My) Education). This includes age and experience-appropriate examples, exercises and scenarios to facilitate learning. OSD/MCTO will also coordinate with all partners to deliver their curricula in the classroom, and integrate the partners' virtual curricula into the DoD TAP Curriculum virtual curricula. Costs for the development, maintenance, modifications, printing and shipping of materials for curricula developed by DoD are the responsibility of OSD/MCTO and the Military Departments. Costs for developing, modifying and hosting DoD TAP Curriculum Virtual Curricula are also the responsibility of OSD/MCTO and the Military Departments. DoD TAP Curriculum Virtual Curricula will be determined by the DoD.
- b. Monitor OSD/MCTO and Military Departments' curricula delivery annually or as needed to maintain a high - quality program. Monitoring will include evaluations of the approved OSD/MCTO curricula and the standardized OSD/MCTO participant assessment of TAP Curriculum. Such data and feedback will be shared with interagency partners to improve the program and elevate participants' issues as well as identify interagency issues of a broad scope to the national level partners.
- c. Conduct assessments of Military Department facilitators by extracting data and trends from the standardized OSD/MCTO participant assessment for TAP Curriculum. The assessment will determine if the facilitator is providing the curriculum in accordance with the approved Program of Instruction (POI) in an effort to further enhance the material and develop best practices. Assessment data will be shared with interagency partners, as appropriate.
- d. Assist DOL, VA, SBA, and OPM with curricula development and technical expertise as requested.
- e. OSD/MCTO and the Military Departments will use personnel and other appropriate data systems, to the extent possible, to assist in the identification of each Service member who is coming within the window of transitioning from active duty. The Military Departments will also use the Defense Manpower Data Center (DMDC) applications, swipe cards for data capturing or their own system to track individual accountability, which will be transferred to the DMDC data repository to ensure and validate individual Service member compliance with 10 U.S.C. Chapter 58 and fulfillment of CRS.

- f. Assist eligible Service members in understanding the CRS they must meet prior to transitioning from active duty. Explain Managing Your Transition (My Transition), Military Occupational Code Crosswalk, Financial planning for transition, and the DoD Education module (Managing Your (My) Education) to eligible Service members and explain how they assist them in achieving CRS. Ensure eligible Service members are informed that they are required to develop an ITP and explain how the ITP and CRS are related to each other and how they are reflected on the DD 2648 eForm.
- g. Ensure Service members meet all mandatory transition assistance requirements and apply exemptions as appropriate.
- h. Encourage and promote maximum participation with the support of installation and unit commanders. The Military Departments will provide an annual briefing to the TAP Interagency SSG on how they inform commanders, officers, and senior non-commissioned officers about their responsibilities for Transition Assistance, additional tracks, and Capstone.
- i. Provide information on the process of enrolling in VA Benefits on VA.gov to Service members during the pre-separation counseling, including user account creation and registration for either a DS Logon or an ID.ME account.
- j. Encourage Service members to complete the web-based TAP Curriculum participant assessment for each module they complete. Participants' assessment data will be shared with interagency partners in de-identified form. To help the partners better assess quality, data results relating to the Benefits and Services briefings, MLCs and all event participation not conducted in person or via virtually should be shared quarterly. Shared data should be sufficiently detailed to permit analysis of data pertaining to location, time started/completed, and demographic data relating to Service and pay grade without identifying individual Service members.
- k. Provide POCs and coordinators at the headquarters and local level.
- l. Coordinate scheduling for the TAP Curriculum activities with partners on at least a quarterly basis and provide storage space for TAP Curriculum materials based upon installations' capability.
- m. Provide DOL, VA, SBA, and OPM access to military installations and locations for the purpose of providing support to transitioning Service members and their spouses.
- n. Ensure access to CONUS and OCONUS locations, to include compliance with Status of Forces Agreement requirements for overseas military installations for DOL, VA, SBA, and OPM personnel, including contractors who are providing DoD-approved transition support for Service members.
- o. Notify and register participants for TAP events, whether delivered by classroom (brick and mortar) methods or through virtual technology. Work with the appropriate partners' coordinators to ensure seating is provided in accordance with priority considerations enumerated in paragraph k of the Joint Responsibility section above.
- p. Notify appropriate partners to this MOU of changes to the quarterly schedules (additions, cancellations, or date changes) in writing at least 10 working days prior to the TAP event.
- q. When National Guard or Reserve members experience un-programmed or un-projected transitions from active

duty National Guard and Reserve commands will request the DOL provide the DOL Curriculum at the transitioning Service members' respective duty stations (home stations). These requests will be in writing, expedited to facilitate receipt by DOL no later than five working days prior to the date the National Guard or Reserve command requires support. The optimal class size for all TAP components is 30 registered participants. The minimum class size should be no fewer than 10 registered participants, and the maximum class size should be no more than 50 registered participants. Requests that deviate from the established minimum and maximum class size will be agreed to at the local installation level and with partner agencies. In situations where these requirements cannot be met, the Military Departments, with OSD/MCTO approval, will coordinate in a timely manner with the other partners to accommodate service delivery.

r. Provide the following:

- (1) **Personnel:** TAP staff are to ensure procedures are in place to maintain order within the classroom. TAP staff are responsible for scheduling Transition Assistance activities and capturing daily attendance of participants.
- (2) **Facilities:** Appropriate facilities, consistent with the Rehabilitation Act of 1973, as amended, on each installation including handicap accessibility, parking, one-on-one events space, workstation spaces, equipment, and materials. Exact requirements will be decided on an installation-by-installation basis as room and capacity dictate. If an installation cannot provide a requested agency's office or workstation space on the installation, then DoD should work with the partners to mitigate the issue. Refer to paragraphs j. and q. *supra*, under the Joint Responsibilities section, if reimbursement funds are required.
- (3) **Classrooms:** Classroom/briefing room facilities for all TAP events on DoD installations that enable an appropriate learning environment will optimally have 30 registered participants, to ensure an effective classroom experience. The minimum class size should be no fewer than 10 registered participants, and the maximum class size should be no more than 50 registered participants. , . Requests that deviate from the established minimum and maximum class size will be agreed to at the local installation level and with partner agencies. In situations where these requirements cannot be met, the Military Departments, with OSD/MCTO approval, will coordinate in a timely manner with the other partners to accommodate service delivery.
- (4) **Equipment for Classroom:** Audiovisual equipment (projection screen, overhead projector, microphone, DVD or appropriate video capability), white board, markers, flip charts, and computer with Internet access. Provide individual computers for all participants. Service members may be allowed to bring their personal computers to leverage digital resources provided during TAP Curriculum and other provided instruction. Ensure power sources/power cords are available for computers and ensure high-speed internet connectivity. The Military Departments are responsible for funding, maintaining, and replacing the stated equipment. OSD/MCTO and the Military Departments may allow eligible separating Service members to use their own electronic devices, but must ensure all security procedures and protocols are followed.
- (5) **Equipment for Permanent Agency Partner On-Site Staff:** Installation printers, copiers, independent telephones and internet connectivity for permanent agency partner on-site staff working on military installations performing normal operations in support of Service members and their spouses. For permanent agency partner on-site staff, provide office or workstation space on installations as determined and agreed to by local installations, the relevant partner agency, and TAP Program Office through local written agreements. If an installation cannot provide permanent agency partner on-site staff the requested office or workstation space and furniture, IT equipment and telephones, then the relevant partner agency is

responsible for providing its staff office space, workstations space and their own furniture as well as all other equipment, telecommunications and internet connectivity for the conduct of normal operations at a location determined by DOL and VA. For itinerant partner agency personnel, temporary fully furnished workspace will be made available as determined locally by the Military Departments. Any costs attributable to such installation level support to the relevant partner agency will be provided on a reimbursable basis as determined by CONUS local installations and the relevant partner agency through local written agreements, based on actual costs as agreed to by both partners to such agreements and consistent with law. Installations must provide interagency partners the use of space and associated services as available within existing resources, mission requirements and security concerns. Any service provided at the request of the TAP Interagency partners, which is above the common level of service provided to non-reimbursable tenants, will be reimbursable. Any costs, attributable to the relevant partner agency will be addressed as appropriate in an Inter-Agency Agreement. See paragraphs j. and q. *supra*, under the Joint Responsibilities section. The use of any facility requires that the installation obtain the proper Real Estate instrument from their supporting Corps of Engineers District. CONUS local installation agreements with the relevant interagency partners will define all direct costs in the local written agreement. A summary of these direct costs, by installation, will be provided by each Military Department to the relevant partner agency by the end of July of each year. Indirect costs associated with common use infrastructure that are not measurable and directly attributable to the relevant partner agency will be provided on a non-reimbursable basis.

(6) **Information Technology (IT):** Technical support for equipment, including projectors, computers, and copy machines. Ensure IT infrastructure support is available for the other partners for classroom (brick and mortar) instruction as well as virtual curricula delivery as appropriate for facilitators and participants. Installations will follow security and privacy protocols to protect PII, in compliance with approved ISA and/or in a manner that does not conflict with any other law, regulation, Government-wide policy, or agency directive. Any costs attributable to the relevant partner agency will be provided on a reimbursable basis and will be addressed as appropriate in an Inter-Agency Agreement. See ‘paragraphs j. and q. *supra*’, under the Joint Responsibilities section. Indirect costs associated with common use infrastructure that are not measurable and directly attributable to the relevant partner agency will be provided on a non-reimbursable basis.

- s. The Military Departments, with OSD/MCTO approval, will have flexibility in logistics and timeframes for delivery of the other partners’ curricula, consistent with statutory requirements and subject to prior collaboration with and approval from the other partners.
- t. Subject to agreements made between the USCG and the Military Departments, USCG personnel will be permitted to attend the DoD TAP Curriculum (excluding mandatory Pre-separation Counseling and Capstone), and receive DoD TAP services described in this MOU. Attendance by the USCG is based on availability of resources while maintaining the same priority of access as the Military Departments.
- u. Conduct a Capstone activity for each eligible Service member in accordance with the timeline prescribed in DoDI 1332.35 to verify the Service member has met the CRS before discharge or release from active duty.
 - (1) Capstone will begin no later than 90 days preceding an anticipated transition for eligible Service members transitioning from active duty.
 - (2) Exceptions to this timeline are:

- (a) Eligible Service members who have less than 365 days until an unanticipated date of separation or retirement, or who are members of the Reserve Component being demobilized/deactivated.
- v. Coordinate at the local installation level with VA headquarters to provide support for Capstone upon request. This will provide VA headquarters ample lead time to determine if VA can provide a person onsite to support the local installation Capstone activity and conduct the “person-to-person” warm handover. The coordination will be an ongoing process.
- w. CONUS-based commanders, except OCONUS commanders, and those in Alaska, Hawaii, Puerto Rico and Guam, should establish relationships with local American Job Centers (AJCs) and are encouraged to make requests for AJC support at Capstone activities. Find your local AJC at <http://www.careeronestop.org/LocalHelp/local-help.aspx>. The Military Departments will coordinate, at the local installation level, with their supporting local AJC to request support for Capstone. This will provide local AJCs ample lead-time to determine if they can provide a person on site to support the local installation Capstone activity and conduct the “person-to-person” warm handover. The coordination will be an ongoing process.

Department of Labor (DOL) Shall:

Under section 1144 of Title 10, U.S.C., and this MOU, in conjunction with appropriate partners from among DoD, VA, USCG, ED, OPM and SBA, establish and maintain a program to provide counseling, assistance in identifying employment and training opportunities, help in obtaining such employment and training, and other related information and services to eligible Service members transitioning from active duty and their spouses. Accordingly, DOL will:

- a. Conduct a mandatory one-day of instruction at all CONUS and OCONUS locations in conjunction with DoD transition forecasts and in cooperation with the other partners and in compliance with this MOU. The one-day workshop is delivered by DOL contractor staff, unless the logistics and timeframe are changed with both DOL and OSD/MCTO’s approvals.
- b. Conduct additional two-day workshops, either DOL Employment Workshop (DOLEW) or DOL Vocational Training Workshop, delivered by contractor staff at CONUS and OCONUS installations/locations in conjunction with DoD transition forecasts and in cooperation with the other partners and in compliance with this MOU. Include, at a minimum, the following elements:
 - (1) Information concerning employment and training assistance, including:
 - (a) Labor market information;
 - (b) Civilian workplace requirements and employment opportunities;
 - (c) Instruction in resume preparation, and;
 - (d) Job analysis, job search, and job interview techniques.
 - (2) Information on federal, state, and local programs, and programs of MSO and VSO organizations, that may be of assistance to Service members after separation from the armed forces, including, as appropriate, the information and services to be provided under section 1142 of Title 10, U.S.C.
 - (3) Inform Service members that the DoD and DHS are required under section 1143(a) of Title 10, U.S.C. to provide proper certification or verification of job skills and experience acquired while on active duty that

may have application to employment in the civilian sector for use in seeking employment and in obtaining job search skills.

- (4) Provide information about the geographic areas in which Service members will relocate after separation from the armed forces, including, to the degree possible, information about employment opportunities, the labor market, and the cost of living in those areas (including, to the extent practicable, the cost and availability of housing, child care, education, and medical and dental care).
- (5) Work with MSO and VSO, and other appropriate organizations in promoting and publicizing job fairs for Service members.
- (6) Provide information about disability-related employment and education protections.
- (7) Provide information regarding the required deduction, pursuant to subsection (h) of section 1175a of Title 10, U.S.C., from disability compensation paid by the Secretary of Veterans Affairs of amounts equal to any voluntary separation pay received by Service members under such section.
- (8) Acting through the Secretary of the Department in which the Coast Guard is operating, provide information on career and employment opportunities available to Service members with transportation security cards issued under section 70105 of Title 46, U.S.C.
- (9) Briefings on where to find and take the Federal Employment Training Module on a virtual platform and Feds Hire Vets.
- c. As needed, will develop and deliver classroom (brick and mortar) and virtual curriculum to include age- and experience-appropriate examples, exercises and scenarios to facilitate learning. This may also include curriculum developed for specific target populations, such as wounded warriors, military spouses, and other eligible populations.
- d. Provide employment counseling, credentialing and vocational training information, skills building, training and education to address the employment related CRS through the DOLEW and other appropriate modules of the TAP Curriculum.
- e. Begun as a pilot in FY 2021, DOL will provide employment navigators at select military installations. Employment Navigators, when available, will assist transitioning Service members and military spouses with one-on-one assistance in their search for identifying and obtaining training and employment.
- f. Be responsible for all costs associated with curriculum development and delivery of the brick and mortar and virtual DOL Curriculum and associated two-day tracks to include development, reproduction, printing, and shipment of all classroom materials to appropriate locations as determined by the Military Departments and USCG. DOL is also responsible for all costs to develop its curriculum and virtual curriculum. The DOL virtual curriculum will be hosted on DoD's designated platform.
- g. Provide Veterans Employment and Training Services (VETS) Federal staff POCs and coordinators at the DOL headquarters and state level for DOL Curriculum.
- h. Work with MSOs and VSOs and other appropriate organizations to assist transitioning Service members and

their spouses in their employment search needs.

- i. Provide sufficient numbers of qualified contract facilitators to meet demands of DoD transition forecasts to conduct DOL Curriculum, and other services as required. All costs associated with training DOL Contract facilitators will be the responsibility of DOL.
- j. Provide overseas DOL curriculum, and other services as required, in accordance with DoD's transition requirements and this MOU.
- k. Provide all DOL Curriculum materials to eligible Service members transitioning from active duty and their spouses or caregivers.
- l. Monitor DOL Curriculum delivery annually or as needed to maintain a high-quality program. Monitoring will include evaluations of the approved DOL Curriculum and include the standardized OSD/MCTO participant assessment of TAP Curriculum. The data and feedback will be used to improve the program at the local level and elevate participants' issues of a broad scope to the national level.
- m. Conduct assessment of DOL Curriculum contract facilitators by extracting data and trends from the standardized OSD/MCTO participant assessment for the TAP Curriculum. The assessment will determine if the facilitator is providing the curriculum in accordance with the approved DOL Curriculum in an effort to further enhance the material and develop best practices.
- n. Conduct an assessment of DOL Employment Navigation to evaluate if transitioning Service members, who utilize the services of Employment Navigators, are obtaining better employment outcomes more rapidly than those who do not utilize Employment Navigators by examining average earnings and the transitioning Service members' timeliness to find employment post transition from the military. This evaluation will be a comparative analysis between sites that have Employment Navigators compared to those without.
- o. Cooperate with the partners to resolve problems that arise in conjunction with the DOL Curriculum and to make changes to ensure its ongoing relevance and effectiveness.
- p. Remind Service members to complete the web-based TAP Curriculum participant assessment for each module they complete.
- q. Provide the following support options to the Military Departments to conduct the Capstone warm handover pertaining to employment-related services:
 - (1) DOL will maintain program guidance to States requesting they support local command/installation requests for assistance at Capstone activities, as best as possible within resource constraints.
 - (2) DOL will ensure its website has up-to-date contact information to assist commanders, military transition staff, and Service members in locating the nearest local AJC where the Service member plans to relocate.
 - (3) DOL will provide data on warm hand overs by reporting aggregate data to the partner agencies on transitioning Service members who have received services from an AJC, subject to the reporting capabilities of the public workforce system.

- (4) DOL will provide data on annual Unemployment Compensation for Ex-Service members (UCX) payments subject to the reporting constraints of the national unemployment insurance system.
- (5) DOL will maintain call-center operations to support information requests from transitioning Service members, especially those based OCONUS. The call center will not operate 24/7-365 days a year; however, consideration for east and west coast time differentials will be considered for extended hours. OCONUS installations will have to make contact with the call center within the hours established by DOL.
- (6) Employment Navigators, when available, will assist in validating transitioning Service members are meeting CRS during Capstone and assisting in the warm handover process.
- u. Continue to improve long-term outcome measures for the TAP with a goal to evaluate the overall long-term impacts of TAP participation on veteran employment, ideally through matching DD 2648 eForm transition records with the National Directory of New Hires at the Department of Health and Human Services.
- v. Continue to work with DOD to support the US Military Apprenticeship Program (USMAP) and provide transitioning service members information on apprenticeships in the public and private sector via apprenticeship.gov.

Department of Education (ED) Shall:

- a. Along with the other partners, communicate, comment, review, and provide input with respect to TAP Curriculum developed or revised by any of the partners or their contractors.
- b. Contribute to the review of TAP Curriculum to provide alignment of revised materials with adult learning strategies and accurate presentation of the content/information.
- c. Communicate to the other partners of this MOU as appropriate, information related to federal financial aid, including the Free Application for Federal Student Aid (FAFSA®), online resources to assist in college selection, college and career readiness, college persistence and completion, college costs, and best practices on adult and virtual learning.
- d. Communicate available information and/or expertise to the appropriate partners on college access, college success, college affordability, and programs specifically sponsored or overseen by ED to be considered for incorporation in appropriate TAP Curriculum and by service delivery providers.

Department of Veterans Affairs (VA) Shall:

Conduct one day of VA curriculum that may include, but is not limited to: education, health care, compensation, life insurance, home loans, as well as Veteran Readiness and Employment (VR&E) benefits information and counseling, as well as an overview orienting Service members to benefits registration, points-of-contact, and other VA resources. This overview will include an orientation of the VA.gov portal to provide information and access on VA benefits, services and health care to all Service members and dependents. VA will be responsible for developing and delivering classroom (brick and mortar), web-based and virtual curricula. All costs associated with the development and delivery of classroom (brick and mortar) curricula, to include printing and shipping of

materials, are the responsibilities of VA. All costs associated with the development of VA Benefits virtual curriculum on a virtual platform are also the responsibility of VA. Web-based and virtual curriculum development cost estimates will be provided to the partner agencies by MCTO to allow inclusion in partner agency budget cycles.

- a. Provide claims support assistance and additional information on Veterans' benefits and services provided by VA.
- b. Provide additional information that is unique to Veterans being separated due to Service-connected disabilities or other medical reasons.
- c. Provide POCs and coordinators at VA headquarters and local VA for VA Benefits and Services briefing.
- d. Provide VA briefers and instructors to deliver VA Benefits and Services in conjunction with other TAP Curriculum, including vocational counseling and Capstone events.
- e. Provide computers for VA personnel at military installations/locations where VA will have a permanent presence to provide advising and briefing support. VA will provide appropriate resources and coordination with the services to VA personnel to facilitate VA support of TAP operations.
- f. Develop and maintain online capability at VA.gov for Service members to access the information provided by VA about VA benefits enrollment.
- g. Ship all VA Benefits and Services materials to the appropriate locations no later than seven working days prior to the start date of VA Benefits and Services. The virtual curricula, instruction, and skills building will provide the same level of quality information that will be provided to Service members attending the classroom ("brick-and-mortar") VA Benefits and Services briefing. The cost of development, modifications, hosting and maintenance of virtual information/virtual curricula is the responsibility of VA. VA is also responsible for all costs in developing, producing, printing, and shipping of all VA Benefits and Services materials (Refer to 'paragraph q. *supra*', under Joint Responsibilities).
- h. Provide individual assistance and information on VA services and support for Capstone, MLC and TAP.
- i. Provide guidance and information on the role of VSOs during VA Benefits and Services
- j. Provide VA Benefits and Services briefings to eligible Service members at itinerate locations as determined by agreements with the Military Departments and USCG. For itinerate locations, the necessary equipment and materials to deliver the VA Benefits and Services briefings will be provided and funded as agreed to by the Military Departments, USCG and VA.
- k. Provide VA Benefits and Services briefings at CONUS and OCONUS installations/locations (Refer to 'paragraph j. *supra*', under the Joint Responsibilities section). The Military Departments will review overseas Standing Operating Procedures (SOPs) in collaboration with VA on an annual basis.
- l. Train all briefers and advisors through a VA formal training process to ensure quality and standardized delivery of curricula.

- m. Monitor VA Benefits and Services briefings and delivery to maintain a high-quality program). Monitoring may include but is not limited to evaluations of the approved curricula and may also include the use of standardized OSD/MCTO participant assessment of TAP Curriculum. The data and feedback will facilitate interagency collaboration and be used to make improvements to the program.
- n. Conduct independent assessments of VA support to TAP, which may include VA Benefits and Services briefings, Capstone and one-on-one events to ensure staff are providing those services and support in accordance with proper instruction).
- o. Remind Service members to complete the web-based TAP Curriculum participant assessment for each module they complete.
- p. Fully participate in the Capstone and ensure representatives are available to receive and coordinate the warm handover for Service members requiring VA benefits, services and/or support.
 - (1) In order to conduct the warm handover for VA related services, the VA will provide the following support options to the Military Services:
 - (a) A VA Lead or VA Capstone Liaison (within available resources) on-site at the Capstone activity. TAP staff or the Service member will contact the VA Lead/Capstone Liaison as needed.
 - (b) Assistance in connecting Service members with the closest VA resources in the region where the Service member plans to relocate.
 - (c) Assistance with a warm handover when the requirement for additional assistance has been identified by the Military Services during a Capstone activity. The VA Briefer/Capstone Liaison/POC will assist Service members with connecting to the appropriate VA Regional Office or Medical Center as required. VA will support group Capstone activities (within available resources).
 - (d) Assistance with making a “person-to-person” connection. However, when there are multiple Capstone activities occurring simultaneously at the same installation, the VA Lead/Capstone Liaison will, within resource constraints, provide reasonable support.
- q. VA plans to staff the larger OCONUS installations with a permanent presence to support Capstone. VA briefers will provide itinerant coverage on an as-needed basis. The VA Lead/Capstone Liaison will be available to facilitate either Capstone activities or one-on-one assistance sessions. The briefers will be trained to connect Service members with the CONUS resources where they will be relocating. Additionally, for Service members who choose to remain overseas after transitioning from active duty, information will be provided regarding the foreign VA claims process.
- r. Provide data annually to the federal partners identified in this MOU regarding the number of TSMs by branch of service, age, groups, and gender entitled to GI Bill benefits to include but not limited to transitioning Service members’ eligibility information, enrollment information, training type, program type, and geographical region of the training facilities.
- s. Provide aggregate data to DoD and the Military Services broken down by:
 - (1) Service

- (2) Component
- (3) Grade
- (4) Number of Service members/Veterans who separate without an Honorable discharge

The aggregate data will consist of:

- (1) Services provided to Service members receiving a warm handover because they did not have a post-transition housing plan.
- (2) Services provided to Service members receiving a warm handover because they did not meet CRS.

United States Coast Guard Shall:

Subject to agreements made between the USCG and OSD/MCTO and the Military Departments, USCG personnel may attend Military Department TAP services described in this MOU. Attendance by the CG is based on the availability of resources while maintaining the same priority of access to Service members from the Military Departments. USCG personnel will utilize the virtual curricula, hosted on a virtual platform, as determined by USCG leadership. When using virtual curricula, USCG personnel will comply with all data collection and submission requirements, as well as the completion of the Transition Assistance Curriculum Participant Assessment as required, if they attended a brick and mortar class. As provided in section 1144(c)(1) of Title 10, U.S.C., USCG will require USCG Service members who are transitioning from active duty to participate in the DOLEW, except for those Service members who are exempt.

- a. Provide USCG POCs and coordinators at the USCG headquarters and local USCG to all partners of this MOU.
- b. Provide for each hosted and approved USCG event:
 - (1) **Personnel:** USCG TAP counselors to ensure procedures are in place to maintain order within the classroom to include scheduling and daily attendance.
 - (2) **Facilities:** Appropriate facilities, consistent with the Rehabilitation Act of 1973, as amended, on each installation, including handicap accessibility, parking, one-on-one event space workstation spaces, equipment, and materials. Exact requirements will be decided on an installation-by-installation basis as room and capacity dictate. If an installation or location cannot provide a requested agency's office/workstation space on the installation, then USCG should work with the partners to mitigate the issue.
 - (3) **Classrooms:** Classroom/briefing room facilities for all TAP events on USCG installations that enable an appropriate learning environment will optimally have 30 registered participants to ensure an effective classroom experience. The minimum class size should be no fewer than 10 registered participants, and the maximum class size should be no more than 50 registered participants. Requests that deviate from the established minimum and maximum class size will be agreed to at the local installation level and with partner agencies. In situations where these requirements cannot be met, the USCG will coordinate in a timely manner with the other partners to accommodate service delivery.
 - (4) **Equipment for Classroom:** Audiovisual equipment (projection screen, overhead projector, microphone, DVD or appropriate video capability), white board, markers, flip charts, and computer with internet access. Provide computers for all participants, or allow Service members to bring their personal computers for TAP Curriculum, Two-Day Service Member Elected Tracks or otherwise as needed or appropriate. Ensure power sources/power cords are available for computers; internet connectivity as resources permit. The

USCG is responsible for funding, maintaining, and replacing the stated equipment. In cases where there is no adequate equipment and high-speed internet connectivity, the USCG should work with the partners to mitigate the issue. The USCG may allow eligible Service members transitioning from active duty to use their own electronic devices but must ensure all security procedures and protocols are followed.

(5) **Equipment for Permanent Agency Partner On-Site Staff:** Installation printers, copiers, independent telephones and internet connectivity for permanent agency partner on-site staff working on military installations performing normal operations in support of Service members and their spouses. For permanent agency partner on-site staff, provide office or workstation space on installations as determined and agreed to by local installations, the relevant partner agency, and TAP Program Office through local written agreements. If an installation cannot provide permanent agency partner on-site staff the requested office or workstation space and furniture, IT equipment and telephones, then the relevant partner agency is responsible for providing its staff office space, workstations space and their own furniture as well as all other equipment, telecommunications and internet connectivity for the conduct of normal operations at a location determined by VA and DOL. For itinerant partner agency personnel, temporary fully furnished workspace will be made available as determined locally by the Military Departments. Any costs attributable to such installation level support to the relevant partner agency will be provided on a reimbursable basis as determined by CONUS local installations and the relevant partner agency through local written agreements, based on actual costs as agreed to by both partners to such agreements and consistent with law. Installations must provide interagency partners the use of space and associated services as available within existing resources, mission requirements and security concerns. Any service provided at the request of the TAP Interagency partners, which is above the common level of service provided to non-reimbursable tenants, will be reimbursable. Any costs, attributable to the relevant partner agency will be addressed as appropriate in an Inter-Agency Agreement. See paragraphs j. and q. *supra*, under the Joint Responsibilities section. The use of any facility requires that the installation obtain the proper Real Estate instrument from their supporting Corps of Engineers District. CONUS local installation agreements with the relevant interagency partners will define all direct costs in the local written agreement. A summary of these direct costs, by installation, will be provided by each Military Department to the relevant partner agency by the end of July of each year. Indirect costs associated with common use infrastructure that are not measurable and directly attributable to the relevant partner agency will be provided on a non-reimbursable basis.

(6) **Information Technology (IT):** Technical support for equipment, including projectors, computers, and copy machines. Ensure IT infrastructure support is available for the other partners. USCG locations will follow security and privacy protocols to protect PII, in compliance with implemented ISA and/or in a manner that does not conflict with any other statutory guidance or agency directive.

- c. Ensure USCG notifies and registers participants for TAP events, whether delivered by classroom (brick and mortar) methods or virtual technology. Work with the appropriate partners' coordinators to ensure seating is provided in accordance with priority considerations enumerated above.
- d. Notify appropriate partners of changes to the quarterly schedules (additions, cancellations, or date changes) in writing at least 10 working days prior to the TAP event.
- e. Provide information on the process of enrolling in VA Benefits on VA.gov to Service members during the pre-separation counseling, including user account creation and registration for either a DS Logon or an ID.ME account, in order to facilitate their orientation to the process during the VA Benefits and Services briefing..

- f. Subject to the availability of resources, provide and fund training for USCG Transition and Relocation Managers at National Veterans Training Institute or other entity approved by the National Office of Veterans' Employment and Training Service (VETS) and stipulated in VETS' current facilitation contract and training provided through OSD/MCTO.
- g. Monitor USCG curricula delivery annually or as needed to maintain a high-quality program. Monitoring will include evaluations of the approved OSD/MCTO curricula and include the standardized OSD/MCTO participant assessment of TAP Curriculum. The data and feedback will be used to improve the program at the local level and elevate participants' issues of a broad scope to the national level.
- h. Conduct assessments of USCG facilitators by extracting data and trends from the standardized OSD/MCTO participant assessment for TAP Curriculum. The assessment will determine if the facilitator is providing the curricula in accordance with the approved Program of Instruction (POI) in an effort to further enhance the material and develop best practices. Have USCG personnel complete the web-based TAP Curriculum participant assessment for each module that they complete.
- i. Use personnel and other appropriate data systems to the extent possible to assist in the identification of each Service member who is coming within the window of transitioning from active duty.
- j. The USCG in collaboration with OSD/MCTO will have flexibility in logistics and timeframes for delivery of the other partners' curricula, consistent with statutory requirements and subject to prior collaboration with and approval from the other partners.

United States Small Business Administration (SBA) Shall:

Maintain, deliver and continuously improve an Entrepreneurship Curriculum for the TAP Curriculum for eligible Service members and military spouses. The TAP Curriculum will include a classroom course that focuses on: 1) introducing the opportunities and challenges of business ownership as a post-service vocation, 2) assisting participants with recognizing business opportunities and assessing the feasibility of their business concepts, 3) providing foundational knowledge required for developing a business plan, 4) identifying public and private resources available to provide additional business assistance, and 5) providing a "warm handover" to the nationwide network of SBA partners with a focus on Veterans Business Outreach Centers. SBA's Associate Administrator, Office of Veteran's Business Development, will serve as the agency's POC for the design, development and delivery of the Entrepreneurship Track. SBA will:

- a. Develop the curriculum and all collateral materials such as text books and handouts. The Entrepreneurship Curriculum will include two, progressive phases:
 - (1) A two-day classroom-based track known as the SBA Entrepreneurship Track, delivered by SBA staff and the following SBA Partners – Veterans Business Outreach Centers (VBOCs), Small Business Development Centers (SDBC)s SCORE, and Women's Business Centers (WBCs), as well as other partners as required and determined by SBA to have the requisite subject matter expertise.
 - (2) Voluntary follow-on training is available from SBA partners that will assist Service members with completing a business plan, identifying sources of capital and additional resources, and providing other business technical assistance. Subject to available funding, maintain and continuously improve an online

Entrepreneurship course provided as a continuing education phase of Boots to Business and an accessible free extension of the Entrepreneurship Track to all eligible Service members and military spouses. The online course will be a more intensive training course covering topics such as business planning, market research, financing a business, business operations, and how to move forward with a business plan.

- b. Evaluate SBA curriculum delivery annually or as needed to maintain a high-quality program. Quality control and curriculum update processes will include evaluations of the approved SBA curriculum and include the standardized OSD/MCTO participant assessment of TAP Curriculum and the two-day SBA Entrepreneurship Track. The data and feedback will be used to improve the program at the local level and elevate participants' issues of a broad scope to the national level.
- c. Conduct assessments of SBA facilitators by extracting data and trends from the standardized OSD/MCTO participant assessment for TAP Curriculum. The assessment will determine if the facilitator is providing the curriculum in accordance with the approved Program of Instruction (POI) in an effort to further enhance the material and develop best practices.
- d. Develop and deliver to OSD's virtual platform and OSD/MCTO a virtual curriculum for the two-day Entrepreneurship Track (hosted on OSD's virtual platform). All costs associated with the development of the Entrepreneurship Track Virtual Curriculum are the responsibility of SBA. All costs associated with maintenance and hosting of the two-day Entrepreneurship Track is the responsibility of OSD/MCTO.
- e. Offer SBA Entrepreneurship Curriculum to all eligible Service members and their spouses. National Guard and Reserve commands can request SBA Entrepreneurship Curriculum at their respective home station after demobilization/deactivation. SBA will facilitate coordination between stakeholders to support those requests.
- f. Work in conjunction with the DoD, USCG, VA, DOL, OPM and ED to review and enhance the Entrepreneurship Curriculum as appropriate.
- g. Inform Service members who complete the two-day entrepreneurship training how to access additional training and resources with a focus on VBOC and the follow-on on-line Entrepreneurship course.
- h. Provide instructors for the two-day Entrepreneurship Track. SBA will coordinate delivery of their curriculum with its Partners to provide instructors for the two-day entrepreneurship training of the TAP Curriculum.
- i. Use the OSD/MCTO standardized assessment to monitor SBA Entrepreneurship Curriculum delivery to maintain a high-quality program. Monitoring should include evaluations of each session. The data and feedback will be used to improve the program at the local level and to elevate participants' issues of broad scope to the national level. OSD/MCTO will provide feedback to all partners to this MOU as appropriate.
- j. Cooperate with the partners to resolve any problems that may arise in conjunction with the SBA Entrepreneurship Curriculum.
- k. Collaborate with the partners to solve any information collection issues including the need for each partner to have access to the TAP Curriculum program participant's data.
- l. Instruct Service members to complete the web-based TAP Curriculum participant assessment for each module which they complete.

- m. Provide aggregate data broken down by:
 - (1) Service
 - (2) Component
 - (3) Grade
 - (4) Number of Service members/Veterans who separate without an Honorable Discharge (provided data sharing agreements with SBA enable this data to be reported by SBA).
- n. The aggregate data will consist of the number of Service members who successfully completed the follow-on online course.

United States Office of Personnel Management (OPM) Shall:

OPM, will continue to support Federal Agencies in honoring the intent of EO 13518 the Veterans Employment Initiative, section 2108a of Title 5, U.S.C., and EO 13832 Enhancing Noncompetitive Civil Service Appointments of Military Spouses. OPM will undertake the following:

- a. Under EO 13518 the Veterans Employment Initiative, OPM will maintain the FedshHireVets.gov website to serve as a one-stop resource for transitioning Service members, Veterans, and their family members to obtain information on Federal hiring authorities, entitlement to veterans' preference, and other Federal employment and hiring information.
- b. Remind agencies of the import of section 2108a of Title 5, U.S.C., which provides that an individual who has reason to believe s/he will be entitled to veterans' preference upon discharge may apply for a Federal position in advance of the discharge, and receive consideration as a preference eligible, if the Service member is able to provide a certification that s/he is expected to be discharged or released from active duty under honorable conditions not later than 120 days from the date of the certification.
- c. Promote awareness of EO 13832 Enhancing Noncompetitive Civil Service Appointments of Military Spouses and applicable statutory provisions under which agencies may appoint certain military spouses without using traditional competitive examining procedures.

Additionally, OPM will:

- d. Evaluate and update the "Federal Employment Module" as part of the TAP curriculum annually, or as needed to maintain a high-quality training program as an addendum to the DOL Curriculum.
- e. Provide DOL the Federal Employment training module curriculum and update as needed.
- f. Provide DOL and VA employment counselors and DOD/USCG TAP Managers with current information on the federal employment process as appropriate. Specifically, OPM will:
 - (1) Provide annual refresher training on the Federal Employment" process (including fedshirevets.gov) as appropriate.
 - (2) Provide a series of webinars and presentations on the Federal Employment process to augment information and knowledge to TAP Managers, TAP Counselors, and DOL Employment Navigators as appropriate.

- g. Educate and work with the partners to integrate the Veterans Reintegration Framework into TAP for the Guard and Reserves and align with other partner efforts where possible and appropriate. Address any problems that helps avoid and reduce Uniformed Services Employment and Reemployment Rights Act complaints and provides appropriate support to the following:
- (1) Veteran new-hires; and
 - (2) Those Reserve Component members who are deployed and/or returning from deployments/activations to Federal service positions.

Review/Changes: With the authority of a single vote per agency, the partners agree to the content listed in this MOU. In the case of the DoD vote, it will represent one single vote for the Department and Military Services. As a best practice, the TAP partners will review the MOU at least once every two years to recommend edits and updates. This MOU may be amended in writing but shall remain in force and effect according to the “Effective Date and Duration” clause. If during the review process it is determined that there will be no changes to this MOU, the TAP EC will sign a joint memorandum stating that the MOU has been reviewed and is approved without change and remains in effect.

Termination/Withdrawal: This MOU may be terminated in writing at the will of all partners. A partner may withdraw from the MOU at any time by providing thirty (30) calendar days written notice to the remaining partners.

Effect of Agreement: This MOU is not a binding contract and does not confer any rights upon any department, agency, individual, or other entity.

This agreement will be implemented in full compliance with all applicable statutes and regulations, including the Privacy Act of 1974, the Freedom of Information Act, and the Federal Records Act. As applicable, all partners need to understand and adhere to DoD 6025.18R, “DoD Health Information Privacy Regulation,” section C3.4, dated January 2003 regarding use, protection, and disclosure of protected health information in the Military Health System. This MOU does not constitute nor require an obligation of federal funds, nor does it give rise to a legally-cognizable partnership or joint venture. It does not authorize the expenditure or reimbursement of any funds, nor does it obligate the partners to expend appropriations or enter into any contract or other obligation. All obligations of the partners under this MOU shall be subject to the availability of funds and resources for such purposes. Each partner to this agreement agrees to bear its own costs in carrying out its responsibilities. Any reimbursement of funds between the partners to the MOU shall be done by separate agreement in accordance with applicable federal law and regulation.

Nothing in this MOU shall be interpreted as limiting, superseding, or otherwise affecting the partners' normal operations, authorities, or decisions in carrying out their statutory or regulatory duties. Nothing in this Agreement is intended to conflict with current law or regulation or the directives of any of the partners. If a term of this agreement is inconsistent with such authority, then that term shall be invalid, but the remaining terms and conditions of this agreement shall remain in full force and effect. This MOU does not limit or restrict the partners from participating in similar activities or arrangements with other agencies.

Should disagreements arise on the interpretation of the provisions of this agreement or amendments and/or

revisions thereto, that cannot be resolved at the operating level, the area(s) of disagreement shall be stated in writing by each partner concerned and presented to the other partner(s) for consideration. If agreement or interpretation is not reached within 30 days, the partners shall forward the written presentation of the disagreement to respective higher officials for appropriate resolution.

Any costs, attributable to VA will be addressed as appropriate in an Inter-Agency Agreement. See paragraphs j. and q. *supra* , under the Joint Responsibilities section. No partner shall be authorized to bind the others without prior written consent. The partners to this memorandum understand that any resulting inter-agency agreements shall contain the following (or substantially similar) language regarding funding dispute resolution: “If a dispute related to funding remains unresolved for more than 30 calendar days after the partners have attempted to resolve the dispute at higher levels, applicable disputes will be resolved in accordance with instructions provided in the Treasury Financial Manual (TFM) Volume I, Part 2, Chapter 4700, Appendix 10, available at <http://www.tfm.fiscal.treasury.gov/home.html>..

Authority of Agency Official Signatures: The Agency Official(s) executing this agreement warrant that they have the authority to execute this agreement on behalf of their respective agencies.

Expenses of Each Partner: Each partner to this MOU will bear its own expenses in connection with the preparation, negotiation, and execution of this MOU and no partner shall be liable to any other partner for such expenses.

Effective Date and Duration: This MOU shall become effective upon the date of the final signature of the undersigned partners. Unless the effective date is formally extended by the TAP EC in writing by amendment or the MOU is approved for extension without amendment, this MOU will remain in force and effect for a period of five (5) years after the effective date, at which point it shall terminate without any further action required by any partner.

- Attachment:**
- Appendix A. Data collection, sharing and reporting.
 - Appendix B. Non-Federal Entities (NFE)
 - Appendix C. Request to Observe TAP Form

Points of Contact (POCs): POCs for each Agency as listed below shall be provided to OSD/MCTO not later than thirty (30) calendar days after the effective date of this MOU. Each partner agrees to notify the other partners of any changes to the POCs listed below as a courtesy. The information for each Agency’s POC will be provided to OSD/MCTO and each partner:

Agencies:
DoD
DOL

ED
VA
USCG
SBA
OPM

Agency POC Information:

Agency Name: (Example: DOL)

Name of POC:

Title of POC:

Official Mailing Address of POC:

Business Phone of POC:

Fax Number of POC:

E-mail Address of POC:

Interagency Memorandum of Understanding Approving Official

Department of Defense

HEBERT.LERNES.J.1121185934
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Date: 2021.06.10 15:50:43 -04'00'

Lernes J. Hebert

Performing the Duties of the Assistant Secretary
of Defense for Manpower and Reserve Affairs

Department of Labor

JAMES RODRIGUEZ
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RODRIGUEZ
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James Rodriguez

Principal Deputy Assistant Secretary
Veterans' Employment and Training
Service (VETS)

Department of Education

Julie Morgan
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Date: 2021.06.15 15:05:14
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Julie Morgan

Senior Advisor to the Under Secretary
Delegated the Authority to Perform
the Function and Duties of the Under Secretary

Department of Veterans Affairs


Digitally signed by Mike J Frueh
104327
Date: 2021.07.08 07:53:40 -04'00'

Mike Frueh

Principal Deputy Under Secretary
for Benefits

Department of Homeland Security (United States Coast Guard)

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Dr. D. M. Navarro

Senior Executive Service, U.S. Coast
Guard
Acting Assistant Commandant for Human
Resources

U.S. Small Business Administration

LARRY STUBBLEFIELD
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Larry Stubblefield

Associate Administrator
Office of Veterans Business Development

U.S. Office of Personnel Management

Robert H. Shriver, III
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Robert H. Shriver, III

Associate Director
Employee Services

DATE: _____

Acronyms and Definitions

A. Acronyms:

CRS	Career Readiness Standards
CONUS	Continental United States
DHS	Department of Homeland Security (United States Coast Guard)
DMDC	Defense Manpower Data Center
DoD	Department of Defense
DoDI	Department of Defense Instruction
DOL	Department of Labor
DOLEW	Department of Labor Employment Workshop
ED	Department of Education
FAFSA®	Free Application for Federal Student Aid
IDP	Individual Development Plan
ISA	Information Sharing Agreement
IT	Information Technology
ITP	Individual Transition Plan
MOC	Military Occupational Code
MOU	Memorandum of Understanding
MSO	Military Service Organization
OCONUS	Outside of the Continental United States
OPM	U.S. Office of Personnel Management
OSD-MCTO	Office of the Secretary of Defense-Military Civilian Transition Office
PII	Personally Identifiable Information

POC	Point of Contact
POI	Program of Instruction
SBA	Small Business Administration
SOP	Standing Operating Procedures
SORN	System of Records Notice
TAP	Transition Assistance Program
TSM	Transitioning Service Member
UCX	Unemployment Compensation for Ex-Service members
USCG	United States Coast Guard
VA	Department of Veterans Affairs
VETS	Veterans Employment and Training Service
VSO	Veterans Service Organization

B. Definitions

1. **Armed Forces** – The Army, Marine Corps, Navy, Air Force, and United States Coast Guard.
2. **Partner/Agency Partners** – A Federal agency participating and delivering services and/or information and other support under the terms of this MOU.
3. **Brick and Mortar** – A learning environment wherein participants attend a TAP Curriculum module in person in a traditional classroom facility led by an instructor or facilitator.
4. **Career Readiness Standards** – A set of common and specific standards and associated deliverables that must be achieved to demonstrate Service members are prepared to transition from active duty effectively and pursue their personal post-transition from active duty higher education, career technical training, and civilian employment goals. The CRS are tangible measures of a Service member's preparedness for a civilian career.
5. **Capstone** – Capstone, as defined by each Military Department, is the component of TAP Curriculum when Commanders verify that Service members have met the CRS, have a viable transition plan and for those not meeting CRS and have additional needs, ensure a warm handover to appropriate partner agencies or local resources.
6. **Coordinator** – A person at the local level who has the responsibility for class scheduling and logistics.
7. **Eligible Service Member** – A member of the Armed Forces including the Reserve Components, being discharged, separated, retired, or released from active duty under Title 10 U.S.C., after his or her first 180 or more continuous days on active duty. In the case of a Service member who is being retired or separated for disability, the requirement to serve the first 180 continuous days or more does not apply.
8. **Eligible Spouses** – A spouse of a Service member transitioning from active duty as described in definition 7.
9. **Facilitator** – A person trained or qualified as a subject matter expert to deliver appropriate components of TAP Curriculum. The facilitator's primary duty is presenting instruction, information, and facilitation of curriculum to ensure Service members meet learning objectives.
10. **Individual Transition Plan (ITP)** – An evolving document created and maintained by the Service member that provides the framework to perform detailed assessments of their personal and professional preparedness to achieve realistic goals after separation from active duty.
11. **Installation** – The term installation includes duty stations of the Army, Navy, Air Force and Marine Corps and the United States Coast Guard stations and units.
12. **Military Departments** – Departments of the Army, Navy, and Air Force.
13. **Military Life Cycle (MLC) TAP** – MLC begins at the first duty station or home station and continues throughout the military career of an eligible Service member, and culminates at Capstone. It includes the development of the IDP. Throughout the MLC TAP, Service members shall be trained, educated and postured to become career-ready upon transitioning from active duty by completing the TAP Curriculum, meeting CRS and having a viable ITP. On commencing the transition process the IDP shall form the foundation for the ITP.

The MLC shall also include a Capstone activity.

14. **Point of Contact (POC)** – A representative from DOL, DoD, VA, USCG (DHS), ED, OPM and SBA who is responsible for carrying out that agency's responsibilities.
15. **Reserve Components** – Army National Guard of the United States, Army Reserve, Marine Corps Reserve, Navy Reserve, Air Force Reserve, Air National Guard of the United States and Coast Guard Reserve pursuant to Title 37 U.S.C. The Reserve Corps of the Public Health Service is not eligible for TAP services.
16. **Targeted Population** – A population of eligible Service members consisting of those who are:
 - a. 18 to 24 years old;
 - b. Completing first-term enlistments;
 - c. Involuntarily separating due to force shaping, or;
 - d. Separating on short notice from military service.
17. **Transition Assistance Program (TAP)** – The overarching program that provides transition assistance, information, training, and services to eligible Service members to prepare them to be career ready when they transition back to civilian life. It consists of multiple elements, including: Individualized Initial Counseling, Pre-separation Counseling, DoD Transition Day, VA Benefits and Services Day, DOL One Day, and two-day Service Member elected tracks. It also consists of policy and procedures, information technology (IT) infrastructure, research, studies and survey data, performance measures and outcomes, assessments, curricula development (brick and mortar and virtual), curricula modifications, CRS, accountability data and resources required to implement transition assistance. Components of the program are delivered in a brick and mortar setting and where possible, curricula will also be delivered in a virtual environment.
18. **TAP Curriculum** – Transition assistance curricula with learning objectives that enable Service Members to meet their post military goal(s). The TAP Curriculum includes: the mandatory Managing Your Transition (My Transition), Military Occupational Code Crosswalk, Financial Planning for Transition, VA Benefits and Services, and DOL One-Day. The TAP Curriculum also includes two-day Service Member elected tracks for: employment, education, vocational, and entrepreneurship pursuits.
19. **Warm Handover** – A Capstone process between respective Military Services and appropriate interagency partner(s) resulting in the person-to-person connection of Service members to services and follow-up resources as needed. The warm handover provides a confirmed introduction and assurance that the appropriate interagency partner acknowledge(s) that an eligible Service member requires post-military assistance and the interagency partner follows through on providing assistance to meet the needs of Service members, mitigate risk, and assist them in attaining their post-transition goals and a successful transition.

APPENDIX A

Data Collection, Sharing, and Reporting: The partners will collaborate on the development of a common data collection and assessment approach, which will include appropriate measures of outputs and outcomes. Where feasible, data sharing that is as near to “real time” as possible could in some areas strengthen the effectiveness of TAP support and services. The partners will endeavor to develop and identify the data collection mechanisms for long-term outcome measures that go beyond current output measures/outcome indicators and are directly relevant to the TAP. The long-term goal is to be able to share data that provides evidence of the effectiveness of TAP, and to evaluate the overall long-term outcomes of interagency transition preparation. Toward this end, the TAP Executive Committee (“TAP EC”) senior leaders will meet to determine effective policy, processes and external partners needed to share relevant data on post-transition support services provided to TSMs requested through the warm handover and opt-in mandates. The goal is to ensure the interagency resources dedicated to warm handover and opt-in requirements, built into DoD policy and guidance, result in positive outcomes for the TSM-turned-Veteran.

The handling of data shared, collected, retained, and otherwise utilized by the partners for purposes of the coordination and implementation of the programs covered by this MOU will conform to applicable legal, regulatory, and policy requirements (i.e., data security and privacy).. This Appendix is not an Information Sharing/Security Agreement (ISA). Further the appropriate parties plan to include in the final ISA commitments to:

- a. Monitor all elements of the TAP Curriculum to maintain a high quality program. Monitoring should include assessments, evaluations and feedback from instructors, observers, Base Commanders/Commanding Officers, subject matter expert staff and participants. The data and feedback will be used to improve the program at the local level and to elevate participants' issues of broad scope to the national level. The ISA shall spell out that the local military installation POCs are to provide feedback to the partners as appropriate. Assessments will include voluntary longitudinal data collection of Service members transitioning from active duty.
- b. Review and assess the overall quality and outcomes of the program and the effectiveness of local delivery, including brick and mortar and virtual at participating sites, and, as appropriate, modify the TAP components under this MOU.
- c. Share TAP data, as appropriate, on a variety of program evaluations and surveys including information gathered from pilots conducted by the partners.
- d. Periodically monitor and evaluate TAP Curriculum events to include, but not limited to:
 - Delivery of curricula and services;
 - Quality;
 - Implementation;
 - Attendance;
 - Participation;
 - Feedback / evaluations;
 - Facilities.
- e. Review the ongoing assessment efforts (such as evaluations, critiques, studies, etc.) with respect to the implemented TAP Curriculum for purposes of providing feedback to the appropriate partners of this MOU, particularly with respect to measurement of employment, basic skills acquisition, and educational access and

progression.

- f. Assist each other in developing quality delivery systems for the virtual environment, including assessment tools. The final ISA must address the development of common architecture and appropriate data rights to ensure interoperable systems and tools for all participants.
- g. As appropriate, coordinate, provide assistance with the coordination of pilot programs, or assist with empirical assessments, studies, surveys, or special initiatives with the partners' headquarters-level POCs.

Department of Defense and the Department of Homeland Security (DHS) through the United States Coast Guard (USCG) Shall:

- a. Share information with all partners as appropriate regarding actual and projected military personnel separations, retirements, and reserve component demobilizations and base closures/realignments as early as possible at the beginning of each fiscal year. Data sharing will continue throughout each fiscal year as deemed appropriate to allow for scheduling and service delivery adjustments. This is required in order to determine the number of workshops that need to be decreased/increased and to adjust resources as necessary.
- b. Ensure that appropriate processes are in place to collect TAP participation data to include Service members' and spouses' attendance at all TAP Curriculum events.

APPENDIX B

Non-Federal Entities: Non-Federal Entities (NFE) who are interested in sharing with the TAP Governance, information about transition resources and services, which they provide, may contact any TAP Interagency partner, which will then forward the request to the TAP Assistance Interagency Working Group (TAIWG). TAIWG will provide guidance as to the appropriate TAP governance body to engage with NFE. This process does not prohibit installation commanders' from authorizing installation access, space and support services to NFEs.

An NFE may attend an established Federal Advisory Committee meeting, open to the public, based on a committee or interest area, searchable on the FACA Database: <https://www.facadatabase.gov/rpt/search.asp>.

Appendix C

Request to Observe/Visit Transition Assistance Program (TAP)

ATTN:

Date: _____

Department of Defense, Transition to Veteran Program Office (TVPO)

FROM: Interagency Partner or other (Select One):

VA ☐ DOL ☐ OPM ☐ SBA ☐ ED ☐ DHS ☐ OSD(LA) ☐

Other ☐ specify _____

POC/Designee/Preparer's Information:

First & Last Name: _____

Title/Rank/Position: _____

Organization/Agency: _____

Email Address: _____

Observer's Information*:

(*Individual(s) who requires access for live observation of TAP on military installation site)

Primary Observer(s) Information:

First & Last Name	Title/Rank/Position	Organization/Agency

Additional guest accompanying Primary Observer (e.g., entourage, associates, family members)

Use back of form for additional guest:

First & Last Name	Title/Rank/Position	Organization/Agency

Copy of Bio of Requester enclosed: Yes ☐ No ☐

Preferred Installation/Facility (City/State/Country): _____

Components of TAP to be observed:

Date(s) of Requested Visit(s): _____

Requested Timeframe(s) of Observation: _____ Special Considerations Y N

. Purpose of observation/visit:

Additional guest:

First & Last Name	Title/Rank/Position	Organization/Agency

